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Forest Stewardship Council (FSC)
Brazilian Small and Low-Intensity Managed Forests (SLIMF)
National Forest Stewardship Standards (NFSS)
Reports

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Report 1

FOREST STEWARDSHIP COUNCIL (FSC) PRINCIPLES, CRITERIA, AND INDICATORS RELATED TO THE RECOGNITION OF AND OBLIGATIONS TO STAKEHOLDERS AND RIGHTSHOLDERS IN BRAZIL'S SMALL AND LOW-INTENSITY MANAGED FORESTS (SLIMF) NATIONAL FOREST STEWARDSHIP STANDARD (NFSS) 11 October 2025

Introduction

FSC certification accounts for 9.4 million hectares of Brazil's producing forests, following three distinct National Forest Stewardship Standards (NFSS):

1. FSS for Natural Forests for Brazil (FSC-STD-BRA-02-2025)
2. FSS for Plantations for Brazil (FSC-STD-BRA-1.1-2025)
3. FSS for Brazilian Small and Low Intensity Managed Forests (SLIMF) (FSC-STD-BRA-03-02-2013)

Brazil has had an approved FSC scheme since 2002's FSS on "Terra Firme" in the Brazilian Amazon. In 2015 version 2 of this standard went into effect, and just this October (2025), the newly approved FSS for Natural Forests for Brazil has replaced it. This standard is juxtaposed by its partner criteria, the 2025 FSS for Plantations for Brazil, which together account for two major forest cover types in Brazil.

For FSC certification, a *natural forest* is defined as a forest area "where most of the major physical and biological characteristics and key elements of the original ecosystem such as complexity, structure, and diversity are present" (FSC-STD-BRA-03-02-2013, p. 52). A *plantation*, on the other hand, refers to planted forests. Brazil's SLIMF FSS is applicable to both property types, so long as they meet FSC's criteria.

FSC SLIMF Eligibility Criteria (FSC-STD-01-003) outlines that a forest producer may qualify as either small or low intensity according to the management area or intensity of harvest (FSC-STD-BRA-03-02-2013, p. 5). *Small-scale* forestry operations are those with an extent less than or equal to 1,000 ha of the total management unit area; *low intensity* forest operations harvest a maximum of 5,000 m³/year and harvest less than 20% of the mean annual increment (MAI). Thus for a forest management area to qualify for SLIMF, it must be either small in area or harvest only a fraction of a forests' yearly growth (FSC-STD-BRA-1.1-2025, p. 11). Thus, the SLIMF forest certification scheme provides principles, criterion, and indicators for the certification of small planted and native forests in Brazil.

Why multiple standards?

When reviewing the effectiveness of the 2002 FSS on “Terra Firme” in the Brazilian Amazon, it was uncovered that as of May 2010 “43 out of 51 management certificates issued for forest plantations in Brazil were for organizations holding areas larger than 5,000 hectares” (FSC-STD-BRA-03-02-2013, pp. 7-8). Acknowledging the higher relative cost of certification for small producers, the SLIMF was developed to cater to small and medium-sized forestry producers in providing robust but applicable standards for small and low-intensity managed forests. Part of increasing the accessibility of FSC certification to small producers involved a shift in language, such as using the terms “forest producer” and/or “person in charge of the forest management unit” as opposed to “forest manager” which is used in the original FSC document. Additionally, explicit recognition of the differences between large corporations and community forest management in terms of peculiarities and scale of the enterprise was adopted to cater the standard to diverse forest management schemes (FSC-STD-BRA-03-02-2013, p. 11).

The 2013 SLIMF FSS was the first step into this depth of consideration for small producers and so while it has now been replaced by the 2025 standards which provide criteria and indicators for SLIMF and NON-SLIMFs, a close reading of the 2013 FSS reveals key insight to the recognition of and codification of obligations to interested and affected parties in forest management schemes in Brazil.

Principles towards Sustainable Development Goals (SDGs)

Essential to FSC’s certification of plantations is that natural forest-to-plantation conversion shall not occur, except if it demonstrably enables “clear, substantial, additional, secure, long term conservation benefits across the forest management unit” (Criterion 6.10 c). Additionally, indicators 6.10.3-4.P prohibit the conversion of high conservation value forests to plantations, and limit its maximum annual extent. These provisions seek to recognize the value plantations as well as natural forests provide for key ***Sustainable Development Goals (SDGs)*** such as *decent work and economic growth* (8); *industry, innovation, and infrastructure* (9); *reduced inequalities* (10); *sustainable communities* (11); *responsible consumption and production* (12); and *climate action* (13). In this way, FSC certification for small producers specifically takes a more grounded approach in connecting local communities, Indigenous rightsholders, producers, and other interested parties to promote environmental protection, social equity, and economic opportunity.

Identifying Affected and Interested Parties

This FSS defines ***stakeholders*** as individuals and organizations holding a “legitimate interest in goods and services provided by an FMU,” encompassing the material, economic, social, and environmental effects of forest management unit activities. Local peoples, employees, investors, insurers, customers, consumers, consumer associations, the general public, and those concerned about the environment are listed as potential stakeholders (FSC-STD-BRA-03-02-2013, p. 54)

and thus the forest producer has a number of *obligations* – legal or moral commitments (FSC-STD-BRA-03-02-2013, p. 49) – towards them. In this perspective, the documentation is implicitly assuming that rather than livelihood-dependent on forest areas, *local peoples* as the “human group that resides in the areas adjacent to the FMU” (FSC-STD-BRA-03-02-2013, p. 48), are *interested* rather than *affected* parties because they are economically invested in forest harvesting at an industrial scale rather than directly on forest resources and cultivation. In practice, however, local communities are highlighted as both *interested* and *affected* parties throughout the FSS, and forest managers have a wide array of obligations to them.

Indigenous populations, on the other hand, are directly affected parties, which the FSS defines using the UN Work Group’s working definition:

[T]he existing descendants of the peoples who wholly or partially inhabited the current territory of a country, at the time when people from different cultures or ethnic origins arrived therein, coming from other parts of the world, to subdue such people, and through conquest, settlement or other means reduced them to a non-dominant or colonial situation; people who today live more strongly in accordance with their social, economic and cultural customs and traditions, than with institutions of the country of which they are now part, under a State structure which mainly incorporates the national, social and cultural characteristics of other segments of the population which are predominant (FSC-STD-BRA-03-02-2013, pp. 54-55).

Additionally, the term *traditional population* denotes a “human group, including remnants of Quilombo communities, distinguished by its cultural conditions, which is organized traditionally by successive generations and its own customs, preserving its social and economic institutions” (FSC-STD-BRA-03-02-2013, p. 55). As opposed to stakeholders, affected populations hold *customary rights*, those “resulting from a long series of habitual or customary actions, constantly repeated, which have, by their repetition and uninterrupted acquiescence, acquired the force of law within a given geographical or sociological unit...acquired simultaneously by self-recognition, external recognition, added to a set of characteristics that differentiate the community from its surroundings” (FSC-STD-BRA-03-02-2013, p. 49).

The FSC FSS for SLIMF does not provide guidance as to how to identify these parties but rather that the forest manager has a responsibility to do so, which is stated explicitly in Indicator 9.2.2.P: “Prior to the consultation, the person responsible for the FMU shall identify the relevant local stakeholders.” In general, the FSS has the tendency to collapse the categories of stakeholder, local community, and Indigenous peoples together. As we will discuss more later, this enables forest managers to structurally ignore the moral obligation to uphold traditional, ancestral, and customary rights in favor of catering to profitable economic ventures.

Rights of and Relationships to Interested and Affected Parties

With obligations as legal and moral commitments towards people groups, forest managers under the FSC FSS for SLIMF are required to engage with these populations differently due to their different levels of *depth of attachment* to the forest management area. This encompasses the variety of ways these populations engage with the land, ranging from an economic-minded reductionist colonial-capitalist ontology held by corporate actors, to a social justice lens by advocacy organizations, livelihood-dependent framework of local peoples, and land-based worldview held by Indigenous populations. These obligations are constructed from FSC principles, criteria, and indicators (summarized in Table 1); local laws and administrative regulations; and international agreements.

1. Stakeholders

As interested parties, stakeholders are parties which do not have legal or intrinsic rights to the forested area but rather have an economic or otherwise reason to be concerned about forest operations. As such, forest managers have the least number of responsibilities to these persons, people groups, or entities. Forest managers are obligated to identify and consult stakeholders about forest operations (Indicators 9.2.2.P. and 9.2.1). However, this is not elaborated upon or codified further within the SLIMF FSS. Another role ascribed to stakeholders is to confirm forest managers are following best practices, most notably to ensure that the forest manager was not involved in forest-to-plantation conversions, which would render the forest ineligible for certification (Indicator 10.9.2.P.). Thus forest managers have the least amount of responsibilities towards stakeholders, but stakeholders perform a regulatory role in forest operations.

2. Local Peoples

Local communities are the most explicitly involved in the forest manager's responsibilities when generating a forest management plan. Forest managers are required to identify, describe, and include local peoples in forest management decision making processes (Indicator 7.1.1.N and Criterion 7.5). Forest operations must strive to promote benefits to local peoples, including employing local peoples under good working conditions (Criterion 4.1, 4.2, and 4.3). The tenure rights of local peoples are upheld, as is their right to use and access forest resources, and come into agreements with free and informed consent (Criterion 2.2, note there is no provision for "prior"). As a whole the FSS upholds local peoples as valuable and knowledgeable persons who can and should be involved in all aspects of forest management. There is little formal distinction, however, as to the relationship of local peoples as affected parties as well as potentially interested parties if they are also employed by the forest manager. Additionally, the roles of local peoples, Indigenous peoples, and traditional populations are blurred' and without

explicit recognition, there is the potential for forests to receive certification without fulfilling their moral commitments to these peoples.

3. Indigenous Peoples

Forest managers are encouraged to consult and must compensate Indigenous peoples for their *traditional knowledge* (Criterion 3.4), which is defined as “information or individual or collective practices of an indigenous or local community, with actual or potential value, associated to genetic heritage” (FSC-STD-BRA-03-02-2013, p. 49). As opposed to the “local experience” of local communities, Indigenous peoples are recognized as potentially holding a more intimate connection with the forested area since time immemorial. This intrinsic valuation of the land and provisions to protect the rights of Indigenous peoples to access, use, and control the management of the forest is upheld (Criterion 3.1, 3.2, and 3.3).

Brazil is a signatory to significant Declarations that respect the rights of Indigenous peoples, and the *Constitution of 1988* also recognizes Indigenous peoples as the “first and natural owners of the land.” With approximately 12.5% of the Amazon forest recognized as Indigenous land (IWGIA, n.d.) and the cumulative impacts of centuries of land conversion, harmful practices, displacement, etc., it is possible to make an argument that most items in the NFSS are applicable to Indigenous Peoples’ rights.

The *United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP)* is a significant document, but for the purposes of this assignment, we will highlight articles 26, 29, and 31. Article 26 expresses the rights of Indigenous peoples to maintain access to their territories and resources, and to develop and control these territories with due respect to customs and traditions. Article 29 relates to Indigenous peoples’ rights to conservation and protection of lands and resources but it also aims to protect Indigenous lands and territories from hazardous waste products. Lastly, Article 31 outlines Indigenous peoples right to protect and maintain their cultural heritage as well as to maintain control of their intellectual property which is significant for forest operations since most Indigenous peoples’ identities are entwined with forests, and therefore, cultural heritage is too (UNDRIP, 2007).

It should also be noted that FSC requires compliance with the provisions of all binding international agreements (Criterion 1.3). While for Brazil, agreements such as the *International Labor Organization (ILO)*, *International Tropical Timber Agreement (ITTA)*, and the *Convention on Biological Diversity (CBD)* each contain explicit clauses related to Indigenous peoples as rightsholders.

4. Traditional Populations

Traditional populations are, like Indigenous peoples, rightsholders and traditionally unrecognized populations, but as more recently settled communities, have a less significant depth of attachment to the land. In the SLIMF FSS Quilombo communities – Afro-Brazilian settlements of formerly enslaved peoples and others of African descent – are explicitly recognized in the Glossary (FSC-STD-BRA-03-02-2013, p. 48), however are only mentioned on other time, in Criterion 9.1 HCV 6, which identifies sites of importance to traditional communities as of high conservation value. Mirroring the ongoing struggles for recognition and rights by traditional populations in Brazil, the existence of the Quilombo are mentioned but no provisions are made to guarantee their place as rightsholders.

Navigating Conflicting Perspectives

By collapsing the rights and relationships between different populations as solely the forest manager and stakeholders, the array of intrinsic rights held by local and Indigenous peoples is equated to that of *interested* rather than *affected* parties. This runs the risk of undermining both local community livelihood attachment to the forested area and Indigenous populations territorial claims, especially when these communities are systematically oppressed by the social, legal, and/or economic systems of the nation. For many clauses the term “competent body” is used to define how disputes should be handled. While forest certification requires the resolution of such ongoing disputes, the processes through which to come to and determine a favorable resolution has been met is not outlined.

Conclusion

It is difficult to isolate aspects of forestry that would not impact the local, Indigenous, or traditional populations, because the landscape operates as an interconnected life-supporting system. However, we have highlighted the direct mentions or direct implications of the guidance given by the FSS to forest managers on the rights and responsibilities towards these groups. While stakeholders are explicitly outlined by the FSS and the depth of attachment held by local and Indigenous peoples recognized, they are not explicitly defined as “rightsholders.” This omission, along with the lack of identification, consultation, and conflict resolution procedure are key points that can be improved, and show that the FSC certification in Brazil has much to improve upon in terms of supporting the rights of and obligations towards local, Indigenous, and traditional populations. One way this can be achieved, is the explicit recognition that Principle 1, compliance with laws, agreements, and FSC principles, should also be considered to support these rights, since Indigenous rights are law.

Table 1. Recognition of and Obligations to Interested and Affected Parties in Brazilian SLIMF FSS

Interested Parties (Stakeholders)	Employees, Investors, Insurers, Customers, Consumers, Consumer Associations, General Public, Concerned Parties,	Identification of Relevant Local Stakeholders (9.2.2.P) Consultation with Local Stakeholders (9.2.1) Stakeholders will confirm forest manager was not responsible for forest-to-plantation conversion (10.9.2.P)
Special Case: Interested and Affected Parties	Local Peoples	Tenure Rights • Use of Resources (2.2) • Free and Informed Consent (2.2) Labor Rights • Employment of Local Labor (4.1) • Health and Safety of Laborers (4.2) • Unionizing and Work Equity (4.3) Consultation • Consultation with Affected Community (4.4.4) • Compensation for Damages (4.5) • Consultation of Local Experience (5.6.2.N) Promote Benefits to Local Peoples • Local Use and Processing (5.2) • Strengthen and Diversity Local Economy (5.4) • High Conservation Value forests include those fundamental to meeting the basic needs of local communities (9.1, HCV 5) • Evaluation of cultural and religiously valued sites (9.1.4.P) Management Plan • Description of Local Communities (7.1.1.N) • Inclusion in Decision Making (7.5)
	<i>Note.</i> Many of these elements also apply to Indigenous Peoples, but have been only listed here to avoid redundancy. These provisions could be made stronger by explicitly outlining their applicability to local, Indigenous, and traditional communities.	
Affected Parties	Indigenous Peoples Traditional Populations	Customary Rights • Free and Informed Consent (3.1) • Control of Management (3.1) • Use of Resources (3.2) Recognition of Intrinsic Value • Protection and Access of Culturally Significant Sites (3.3) • Hunting restricted to the subsistence needs of the community (6.2.3) • High Conservation Value forests include those important to the cultural identity of traditional communities (9.1, HCV 6) Consultation • Compensation for Traditional Knowledge (3.4) • Consultation of Traditional Knowledge (5.6.2.N)
	<i>Note.</i> Listed here are provisions that are applicable explicitly and solely to Indigenous or Traditional Populations.	

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Report 2

GUIDANCE ON RECOGNIZING AND UPHOLDING THE RIGHTS OF LOCAL COMMUNITIES, TRADITIONAL POPULATIONS, AND INDIGENOUS PEOPLES WITHIN FSC MANAGEMENT UNITS

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Introduction

In paired exercise #2, we discuss the difference between interested stakeholders and affected populations. Exercise #2 outlined that stakeholders possessed interest in the forest management units (FMU), while affected populations have customary rights, which are habitual, place-based rights, which acquired the force of law (*de jure* or *de facto*) in the FMU (FSC-STD-BRA-03-02-2013). Legal rights on the other hand are rights that are codified or ratified law (*de jure*). Further, we discussed and assessed the guidance given to ‘the Organisation’ on how to recognize and safeguard the legal and customary rights of Indigenous Peoples to access, use, and control their territories. Conversely, we found that local people’s rights were clearly defined and upheld. FSC upholds local peoples as valuable and knowledgeable persons who can and should be involved in all aspects of forest management.

In this report, we expand our examination of Brazil’s process of recognizing and upholding the rights of local communities, traditional populations, and Indigenous Peoples within FSC management units.

FSC Requirements and Brazil’s NFSS

Forest Stewardship Council (FSC) documents expand beyond the National Forest Stewardship Standard (NFSS) for Brazil. The network of documents spans from national standards, international requirements, guidance for standard developers, risk assessment frameworks, and more. This is a vast amount of content that together is used to develop NFSSs, assist auditors, and inform forest managers about FSC best practices and requirements.

Per General Requirement 2.2.a, adopt or 2.2.b, adapt, the Standard Development Group (SDG) does, in fact, have the discretion to choose to adopt or adapt the International Generic Indicators (IGIs). Additionally, 2.2.b.ii expands on adding locally relevant or national norms, while 2.2.b.v expresses the discretion of the SDG to expand or focus the IGIs to improve outcomes (FSC-PRO-60-006 V2-0, 2015), meaning the SDG could include Brazilian local or ratified laws to strengthen rights. However, the National Risk Assessment for Brazil highlights that relating to Indicator 1.15, “[a]lthough the legislation exists that describes the requirement for consultation with Indigenous community-related entities...the large number, diversity and scattered nature of the traditional communities in Brazil leads to a low level of compliance with such legislation” (FSC_NRA-BR V1-0, p. 59).

The FSC National and General Risk Assessment Framework provides guidance to uphold rightsholders. Thus while Brazil's SLIMF NFSS did not indicate local, Indigenous, traditional, or 24 Afro-Brazilian peoples as rightsholds, the Risk Assessment Framework did via Indicators 42, 43, 44, and 46. It also indicated "when non-negligible risk thresholds were exceeded, risk mitigation measures should be taken" (FSC-PRO-60-006b V2-0, 2024, p.16). The non-negligible risk for Indicator 42 is "identified laws are not consistently upheld by all entities, are often ignored, are not enforced by relevant authorities, or any combination thereof" (FSC-PRO-60-006b V2-0, 2024, p.44) and non-negligible risk for Indicators 43, 44, and 46 are similar. Additionally, FSC's Guidance for Stakeholder Engagement (2021) acknowledges Indigenous peoples as rightsholders, it does not provide clear guidance on how to identify rightsholders in FMUs, only how to proceed once you have identified rightsholders (FSC-GUI-30-011, 2021). These additional FSC documents, therefore, enhance the operation of Brazil's NFSS, however fall into similar issues as the NFSS itself, where there is explicit acknowledgement but no clear procedure to ensure compliance with best practices.

Finally, there exists significant ambiguity as to whom to contact during consultation. Multiple clauses across FSC documents list the subjects for consultation as 'responsible bodies' and 'representative institutions' (FSC-STD-BRA-03-02-2013, FSC_NRA-BR V1-0). The former is defined as Brazil's public bodies: the National Indian Foundation (FUNAI), the National Institute for Colonization and Agrarian Reform (INCRA), and the Palmares Cultural Foundation (FCP). These agencies are the primary bodies and voices for Indigenous and Traditional Populations in Brazil's government, and are essential for ensuring their rights are upheld. These bodies, however, are being institutionally weakened through political interventions, reductions of budget and jurisdiction, and more (OCED Watch, 2022).

Conclusion

It may seem trivial to insist that the rights of local, Indigenous, traditional, and Afro-Brazilian peoples' rights be explicitly upheld within the NFSS, but it is necessary. In 2024, 196 rightsholders were murdered protecting their land, and a large portion of the casualties were local, Indigenous, traditional, and Afro-Brazilian peoples. Since 2012, the total number of land defenders murdered climbed to 2,106. As we all benefit from the stewardship of local, Indigenous, traditional, and Afro-Brazilian peoples' (Ingri, 2024), and FSC and forest operators earn their livelihoods from a large portion of traditional land, it is only appropriate to acknowledge, thank, and protect the rightsholders.

There is limited information available regarding FSC forestry and impacts on rightsholders in Brazil that has not been published through FSC. However, due to the First Nations Information and Governance Centre's (FNIGC) Ownership, Control, Access, and Possession (OCAP®) Principles, which highlight First Nation data sovereignty, asserts that only First Nations should have control of their information (FNIGC, 2025). Further, it is expected that due to the vast cases of appropriation and misuse of Traditional Knowledge, there is little trust to facilitate sharing

Indigenous or Local knowledge, and therefore, a lack of incorporation of Traditional Knowledge into FSC forest management plans (FMP) created by non-Traditional certificate holders.

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Report 3

FSC GUIDELINES FOR FREE, PRIOR, AND INFORMED CONSENT IN BRAZIL

8 November 2025

The Forest Stewardship Council (FSC) champions Free, Prior, and Informed Consent (FPIC) as an iterative engagement process which safeguards the legal and customary rights of Indigenous Peoples. Guidelines for FPIC (via FSC-GUI-30-003 V2-0) are robust however non-normative, meaning that they are not authoritative and therefore not binding in the same way that National Forest Stewardship Standards (NFSSs) are.

The most recent iteration of this document responds to concerns highlighted from public consultation platform responses on Version 1.0. Comments from the Economic and Social South chambers indicate that in addition to the need to provide flexibility when identifying Indigenous Peoples and Local Communities to account for the historical context of diverse states, there is significant concern as to whether the FPIC guidance presented is accessible and feasible, especially for smallholders (FSC-GUI-30-003 V2-0 Draft V1.0 Public Consultation Summary Report).

The final FSC FPIC Guideline document recognizes FPIC as a *right* of Indigenous Peoples, a *best-practice* for natural resources operations, and an *ongoing process* between affected rightsholders and ‘the Organisation’. As such, implementing FPIC requires gathering information regarding legal and customary rightsholders, building relationships with affected parties, and making binding agreements as an iterative process. As such the Guideline provides a 7-step process for implementing FPIC in Indigenous territories and non-Indigenous affected parties with legal or customary rights in the Forest Management Unit (FMU). Additionally, the Guideline provides guidance on how to approach issues where historical grievances exist and to recognize whether the grievance is against the state or the organization and provides suggestions for resolution.

One of the concerns highlighted through public consultation was the emphasis on state recognition of the existence and rights of Indigenous Peoples. The guidance given to the Organisation to defer to government entities, for example, to request further information regarding Indigenous Peoples in the region may not receive a response or align with customary rights. However FSC, in recognition of Organisation limited sphere of activity defers to state alignment with international agreements to support Indigenous Peoples rights:

“The state remains the primary duty bearer of responsibility for the implementation of human rights standards, including ILO 169 and the UN Declaration on the Rights of Indigenous Peoples (UNDRIP). However, as a voluntary certification system, The Organization must still uphold the requirements of the relevant NFSS”
(FSC-GUI-30-003 V2-0, p. 9).

In many countries, however, states being a signatory to UNDRIP or ILO Agreements does not equate to robust domestic recognition and rights for Indigenous Peoples. Therefore, the deferral to government identification of Indigenous Peoples territories and rights is a major pitfall of FSC FPIC Guidance and Brazil's NFSS as Organisations are faced with many barriers to identifying whom they should consult with about natural resource activities.

Additionally, as FSC is a Forest Stewardship certification scheme, while the guidance given to 'the Organisation' on FPIC for on-territory commercial logging is robust and thorough, there is no guidance provided for FPIC for on-territory developments such as mineral mining, pipeline rights-of-way, highways, coastal or river fishing licences.

Further, the guidance references the FSC Glossary of Terms (FSC-STD-01-002) which indicates that FPIC implementation has been achieved when the rightsholders "have given consent to an action prior to its commencement, based upon a clear appreciation and understanding of the facts, implications and future consequences of that action, and the possession of all relevant facts at the time when consent is given" (2017, p.12). This highlights the pitfall of not generating a binding agreement when engaging with Indigenous Peoples that often means rightsholders have no mechanism to withdraw consent.

FPIC in Brazil

Brazil's NFSS outlines Principle 1, Compliance with Laws and FSC Principles, which are applicable to FPIC standards as they are constitutionally protected rights in Brazil. Criterion 2.2 addresses FPIC obligations to local communities under Principle 2, Tenure and Use Rights and Responsibilities. Criteria 3.1, 3.2, and 3.3 address forest management and compensation for knowledge with free and informed consent of Principle 3, Indigenous Peoples' Rights. Lastly, Criterion 4.5.2. addresses the rights of affected rights holders who do not identify as Indigenous Peoples, under Principle 4, Community Relations and Workers' Rights.

Brazil's National Indian Foundation (FUNAI), the National Institute for Colonization and Agrarian Reform (INCRA), and the Palmares Cultural Foundation (FCP) are the nation's public bodies which handle the affairs of Indigenous and Traditional Populations. It is through these departments that official documentation of land claims and rights occurs, and thus it is these bodies Organisations are encouraged to consult when engaging in development operations.

The first limitation to these processes is that the jurisdiction of INCRA extends only to federal public lands (Rapoport Delegation on Afro-Brazilian Land Rights, 2008, p. 22), thus rendering the titling process inaccessible to many. Adding to this strife, FCP only recognizes land occupied from 1888 to present, not provisioning for the displacement of peoples before or after that time (p. 23). From 2000 to present, the responsibilities of FUNAI, INCRA, and FCP have continuously been shifted and providing reduced funding, further barriers to the titling process. Important both for FSC and beyond, "the lack of title represents a high level of invisibility within

the Brazilian State and leaves the community members without basic citizenship rights or effective access to public programs” (p. 4).

Implementation in Practice

As of 2020, Brazil had 332 officially designated Indigenous Lands (IL) and 92 ILs pending approval in the Brazilian Amazon. These lands are known to house highly sought-after minerals and commodities, such as gold and iron ore. In the same year, former President Bolsonaro wished to gain access to the minerals and commodities and signed Public Law 191, which permitted mining inside ILs with no guarantees to ensure FPIC practices were exercised (Siqueira-Gay et al., 2020). Unfortunately, Bolsonaro’s actions are consistent with typical industry and state perspectives and behaviours that have historically undermined IPLC rights worldwide. When it comes to FPIC, “governments, like industry actors, tend to adopt a minimalist interpretation of their consultation and FPIC duties (Montambeault & Papillon, 2023, p.335).

In Brazil, the Constitution provides a strong legal framework for Indigenous Peoples’ and Local Communities’ (IPLC) rights. Article 231 of the 1988 Constitution obligates the state to protect IPLC “rights to difference, autonomy, self-determination, and participation on their traditional land” (Montambeault & Papillon, 2023, p.342). However, there is no national policy that sets consultation standards or guidelines, and consultation requirements are usually ignored (Montambeault & Papillon, 2023). As a result, Brazilian IPLCs have appropriately determined that there is a need for them to establish their own FPIC protocols.

Indigenous Peoples in Brazil: Successes and Struggles with FPIC

In 2014, the Wajapi People of Amapa deployed their consultation protocols and were the first to do so in Brazil. Since the protocol of the Wajapi People was established, to 2022, “seventeen Indigenous consultation and consent protocols had been adopted... with a few more Quilombolas and other traditional communities” (Montambeault & Papillon, 2023, p.342).

For the Krenak People, there was no other option but to create their protocol after the Mariana dam disaster, which released 40 billion litres of toxic mud tailings (Gonzalez, 2016), leaving their community, lands, and resources devastated. In doing so, the Krenak People have ensured their seat at the table to exercise their free, prior, and informed consent regarding future development in their territory (Montambeault & Papillon, 2023).

The Brazilian IPLC-developed protocols are “supported by NGOs, legal experts, as well as FUNAI, a federal government body responsible for promoting and protecting Indigenous rights, and the Attorney General” (Montambeault & Papillon, 2023, p. 342). Further, in a 2017 decision of the Tribunal Regional Federal de Primeira Regiao (TRF1), the court determined that the Juruna People should be consulted based on the protocol they established, but it is not the court

decision that makes their protocol valid, the constitutionally protected IPLC rights to govern their traditional territory make their protocols valid (Montambeault & Papillon, 2023).

This demonstrates precedent for FPIC in Brazil as a powerful tool for Indigenous Peoples, but as a requirement must be strengthened to facilitate compliance by industrial actors.

The Future of FPIC in Brazil

An upcoming project will shed additional light upon the experience of Indigenous Peoples in navigating the legal, administrative, and corporate agreement spheres to safeguard and exercise their right to FPIC. Forest Trends and GreenData, two non-profit organizations are working with the Brazilian Ministry of Indigenous Peoples and local Indigenous grassroots movements in a new project: *Strengthening Indigenous Territories: Governance, Climate Finance, and Biodiversity Value Chains*.

With the goal of strengthening Indigenous territorial autonomy and governance, the two-year project will engage Indigenous communities in capacity-building workshops, provide technical support for commercial endeavors, and work across governance bodies to implement the National Policy for Territorial and Environmental Management of Indigenous Lands (PNGATI) (Forest Trends, 2025, June 9).

However, the largest challenge remains, which is the recognition and protection of Indigenous Peoples as rightsholders on their lands. Given the diverse levels to which these principles are upheld by state governments, FSC should strengthen their procedures with additional clarity for local contexts and provide non-governmental pathways to the identification of Indigenous Peoples. This will allow the robust guidance for FPIC to be implemented and accessible for all forest managers.

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Report 4

PROTECTIONS AND VALUATION OF TRADITIONAL KNOWLEDGE IN BRAZIL

22 November 2025

Introduction

Traditional Knowledge (TK), as defined by the World Intellectual Property Organization (WIPO), is “information, know-how, skills and practices that are developed, sustained and passed on from generation to generation within a community, often forming part of its cultural or spiritual identity” (n.p.). Indigenous and local communities have TK in all subject matters that have been transferred from generation to generation since time immemorial. This report will focus on Traditional Ecological Knowledge (TEK) under the TK umbrella, as it pertains to the Forest Stewardship Council’s (FSC) National Forest Stewardship Standards (NFSS), the global, national, and local protections for TK that the NFSS invokes, and supplemental resources for Brazil’s Small and Low-Intensity Managed Forests (SLIMF). Additionally, the report will review the United Nations Conference of the Parties (COP) 30 for updates regarding TK.

Brazil’s SLIMF NFSS and Associated Traditional Knowledge Protections

The FSC NFSS for Brazil SLIMF includes protections for TK either directly, implied, or through national and international multilateral agreements with TK protection. Principle 1, *Compliance with Laws and FSC Principles* (2013), does the latter. Principle 1 requires that forest management respect all applicable laws, international treaties and agreements to which the country is a signatory, as well as FSC Principles and Criteria. Therefore, Principle 1 invokes protections provided by the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), Convention on Biological Diversity (CBD), WIPO’s Treaty on Intellectual Property, and Brazil’s Constitution of 1988. Although some multilateral agreements safeguard Indigenous and Tribal rights to decide their own priorities for their land and incorporate their knowledge and value systems, only a few agreements protect TK.

TK protections are provided in Article 31 of UNDRIP, which states Indigenous Peoples (IP) have the “right to maintain, control, protect and develop their intellectual property” (p. 23). Article 11 outlines IP’s right to seek redress when TK is taken and/or used without consent. However, UNDRIP is specific to IP and does not provide protections for local communities’ TK (UNDRIP, 2007).

Fortunately, the CBD recognizes Indigenous Peoples and Local Communities’ (IPLC) contributions of TK and the need to equitably share the benefits of TK with IPLC (CBD, 2024b). The CBD COP 16 decisions 2, *Digital sequence information on genetic resources*, establishes the Cali Fund. The Cali Fund is a voluntary fund for companies, where 0.1% of profits are split between conservation and IPLC’s whose territories housed the genetic sequence information

used. COP 16 decision 4, *Programme of work on Article 8(j) and other provisions of the Convention on Biological Diversity related to indigenous peoples and local communities to 2030*, recognizes TK as an asset which should be given the same respect as Western knowledge, and requires the consent of IPLC for the use of TK (CBD, 2024a).

In 2024, Brazil and 176 other member countries signed the World Intellectual Property Organization's Treaty on Intellectual Property, Genetic Resources, and Traditional Knowledge. A historic development, the treaty links Intellectual Property as understood in the global economic realm to the "preservation of genetic heritage and the traditional knowledge of indigenous peoples and traditional communities" (Gov Brazil, 2024, May 27). On an international level, this treaty provides an economic mechanism through which to support environmental and human rights protections. At this current point in time, it is unclear the efficacy of the treaty's adoption and whether it achieves its stated goals of providing compensation and economic opportunity for Indigenous Peoples and Traditional Communities, however it is an example of one way in which the knowledge of these communities can be properly attributed.

Lastly, Brazil's constitution provides protections of IPLC rights, but Article 231 indicates Brazil's obligation to protect and ensure respect for all IPLC property. Although, this does not specify TK, intellectual property has been included here.

The NFSS Principle 3, *Indigenous Peoples Rights*, is dedicated to, and addresses legal and customary rights. Criterion 3.4 requires consent and compensation for the use of TK. Further, Indicator 3.4.2. requires the protection of TK.

FSC Supplemental Documents

FSC supplemental documents FSC-PRO-60-010 V2-1, *Development of Forest Stewardship Standard Risk Assessment*, FSC-PRO-60-007 V1-2 *Structure, Content and Development of Interim National Standards*, and FSC-PRO-60-006 V2-0 *Development and Transfer of National Forest Stewardship Standards to the FSC Principles and Criteria* have no guidance or protection for TK. However, FSC-PRO-60-006b V2-0 *EN Risk Assessment Framework*, ensures local knowledge is utilized when applicable, but does not protect TK. FSC-STD-01-001 V5-3 FSC® *Principles and Criteria for Forest Stewardship* does protect IPLC TK under criterion 3.6 and 4.8.

Indigenous Knowledge in Brazil

Belém, Brazil is this year (2025)'s host for the United Nations Framework Convention on Climate Change (UNFCCC)'s 30th Conference of Parties (COP). As COP 30 wraps up this week (November 21st), a wave of media is being released from governments, ENGOs, advocacy groups, and environmental organizations across the globe. From both the hosting nation and the UNFCCC body more generally, a variety of events and publications have highlighted that

Indigenous Knowledge which is rooted in Indigenous Peoples' homelands globally provides a framework for climate action and sustainable futures.

From the @unclimatechange Instagram account, for example, a November 17th video featuring Indigenous leaders at various COP 30 events is captioned:

“Global cooperation needs diversity of voices, perspectives and solutions. The insights, wisdom and leadership of Indigenous Peoples remind us that the health of our lands, waters, and skies is inseparable from the health of our communities, our economies, and our shared future”
(UN Climate Change, 2025, November 17, [Instagram Post],
<https://www.instagram.com/p/DRMWZ-gEU9d/>).

Rhetoric emphasizing the necessity of developing a ‘global Mutirão’ – from ‘Motirõ,’ a Tupi Guarani (Indigenous Brazilian language) word for ‘a group of people who work together to create something that benefits all’ – for successful implementation of climate policy has been prevalent at COP 30 (Pilote, 2011). At the core is strengthening the voices of local knowledge to inform global climate governance initiatives (Ferreira, Buenaño, & COP 30, 2025, November 14). On the national level, direct financing to Indigenous-led initiatives, guaranteeing territorial rights and access to resources were emphasized as essential (Marques & COP 30, 2025, November 12).

In a letter for COP 30, Sonia Guajajara, Minister of Indigenous Peoples of Brazil, writes:

“The evidence is clear: where Indigenous territorial rights are respected, deforestation declines; where they are denied, destruction advances.

Indigenous peoples are not just environmental defenders. They are guardians of ancient cultures, bearers of knowledge, ways of life and values that ensure the continuity of forests, rivers and biodiversity.

Belém will be the place where science and ancestral knowledge can walk side by side. May COP30 be remembered as the moment when humanity recognised that Indigenous peoples are not just part of the solution: they are protagonists of the future that we need to build collectively”

(Guajajara, 2025, November 8).

The ‘Indigenous protagonism’ advanced by Guajajara and other Indigenous leaders in COP 30 emphasizes the importance of sharing diverse knowledges and experiences from across the globe (Souto, 2025, April 11). However, knowledge sovereignty and proper attribution to Indigenous Peoples remains a global challenge.

The Future of Indigenous Knowledge for Responsible Forest Stewardship

Like UNFCCC, WIPO, UNDRIP, and CBD, FSC recognizes Indigenous and Local Communities' as holding knowledge about their communities and environment due to their depth of attachment with their homelands. This knowledge is highlighted as important and forest managers are encouraged to consult this knowledge to make informed decisions for sustainable forest operations and harvesting practices. From a variety of sources, legal protections for Indigenous Peoples' knowledges are being developed, however, challenges remain in terms of ensuring these protections are upheld and that knowledge is property attributed to Indigenous Peoples. FSC's guidance for Brazil's SLIMF NFSS relies on international agreements, governmental affairs, and best-faith practices to ensure these elements are complied with. While a good start, there is much work to be done, with one first step being the support and funding for Brazil's public bodies as well as direct financing to Indigenous Peoples to build their capacity for defending against encroachment on their lands and the unattributed exploitation of their Knowledges.

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